

Form No:HCJD/C-121
ORDER SHEET

**IN THE LAHORE HIGH COURT LAHORE
JUDICIAL DEPARTMENT**

Case No: W.P No.19727/2009

Farooq Ahmad Ch. Versus Govt. of the Punjab etc

S.No. of order/ Proceeding	Date of order/ Proceeding	Order with signature of Judge, and that of Parties of counsel, where necessary.
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21.01.2015 Qazi Misbah-ul-Hassan, Advocate for the petitioner.
Mr. Javed Iqbal Advocate for respondent No.2

The relevant facts which are necessary for the determination of the controversy in the instant petition are that the petitioner joined the Punjab Provincial Cooperative Bank Ltd. (P.P.C.B.L) in June, 1965. He superannuated as a senior cashier upon attaining the age of 60 years. He was granted leave preparatory to retirement on 15.03.2004. On 14.6.2004 a criminal case was got registered against him by the Bank and on 18.9.2004 departmental proceedings were set in motion. Vide order dated 26.11.2004, the petitioner was dismissed from service. The said order is at page 13 of this petition as annexure ‘D’. A representation was filed to the Appellate Authority and since it was not decided within thirty days, the petitioner filed

an appeal to the Punjab Service Tribunal(**PST**). On 10.06.2005 the appeal was allowed by the PST and a *de novo* inquiry was ordered. The P.P.C.B.L appealed to the Hon'ble Supreme Court of Pakistan against the order of the PST and vide order dated 17.1.2006 the case was remanded to the PST by the Hon'ble Supreme Court to reconsider the question of jurisdiction. Upon remand, on 8.5.2006 the PST dismissed the appeal of the petitioner on the ground of jurisdiction. Meanwhile, on 11.10.2006, the departmental representation earlier filed by the petitioner was dismissed by the departmental authority.

2. Parallel proceedings were initiated by the P.P.C.B.L under section 54 of the Cooperative Societies Act, 1925 by way of a petition to the Registrar of Societies for the recovery of the amount allegedly embezzled by the petitioner and others. The said proceedings were disposed of by the Registrar and an Award was made on 09.01.2008. The portion relevant for the purposes of the instant petition is reproduced as under:

“...Besides, Haji Khalid Farooq, respondent No.4 is fully responsible as he took over the charge from Mr. Farooq Ahmad

Chaudhry, Respondent No.2 on 26.5.2004 when he proceeded on LPR. The cash was found short on 12.6.2004 after 17 days of his proceeding to LPR. Hence Respondent No.4 is responsible for all the deficiency after taking over the charge as Cashier.

...

I have come to the conclusion that the responsibility of shortage of cash lies on Haji Khalid Farooque, Head Cashier (Respondent No.4) and any other person held responsible by the Bank for the losses to the tune of Rs.10,05,000/- as prayed for. With these observations, the petition is disposed off."

3. The petitioner is aggrieved by the order of the Administrator of P.P.C.B.L who vide order dated 22.6.2009 has passed the following order:

"4. NOW THEREFORE, I, Khalid Pervez, Secretary Cooperatives / Administrator, PPCBL in exercise of powers conferred upon me under the Revised E&D Rules, 2004 of the Bank, do hereby modify the Office Order No.490 dated 11.10.2006 as under: -

- i) Compulsory retirement from the Bank Service.*
- ii) Recovery of pecuniary loss of Rs.502,500/- with mark-up @ 12% p.a. till the liquidation of this amount."*

4. The learned counsel for the petitioner submits that after determination of the liability by the statutory functionary viz Registrar of Societies, the Administrator could not have passed the impugned order as the matter had already been finalized.

5. The learned counsel for the respondent has taken a threshold objection to the maintainability of the instant petition, as according to him, the P.P.C.B.L is not regulated by statutory rules and, therefore, is not amenable to the jurisdiction of this Court.

6. Confronted with the above objection, the learned counsel for the petitioner submits that he does not intent to challenge the impugned order dated 22.6.2009 passed by the Administrator to the extent of compulsory retirement from the Bank service. However, he submits that his prayer would only be confined to the legal question formulated above.

7. I have heard learned counsels for the parties. I am not inclined to go into question of the vires of the impugned order dated 22.6.2009. However, the only question of law that I intent to discuss and determine is whether the determination and the making of the Award by the Registrar should suffice and whether the Administrator of P.P.C.B.L subsequently can upend that Award. From the resume of facts brought forth, it is clear

that the application under section 54 of the Cooperative Societies Act, 1925 had been filed by the Bank itself for the recovery of the amount from the persons allegedly involved in the embezzlement including the petitioner. It was upon the said application of the P.P.C.B.L that the Award was made by the Registrar. The P.P.C.B.L cannot now turn around and take a different stance or to return a different finding from the one which has been made vide the Award by the Registrar. Having approached a forum and having submitted to its jurisdiction it does not lie in the mouth of P.P.C.B.L to assert that they can revisit that Award through some internal proceedings. This would amount to double jeopardy and it cannot be permitted. The question here is the enforcement of the Award rendered by a statutory functionary and not regarding the enforcement of some service rules which are non statutory in nature.

8. In view of the above, I would accept this petition and hold that the Award of the Registrar had been finalized with regard to the fixing of liability about the recovery of the

amount which was alleged to be embezzled. It is clear from the contents of the Award reproduced above that the respondent No.2 has been absolved for any wrong doing and it has been held that the P.P.C.B.L should recover its losses from the person who has been held responsible in the said Award viz Haji Khalid Farooq, Head Cashier.

9. In view of the above, this petition is **accepted** and the impugned order dated 22.6.2009 to the extent of ordering for recovery of pecuniary loss of Rs.502,000/- with mark-up @ 12% p.a. till the liquidation of this amount from the petitioner is held to be without lawful authority.

(SHAHID KARIM)
JUDGE

Announced in open Court on 23.01.2015.

JUDGE

Approved for reporting.

JUDGE

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Rafiqat Ali